

Policy: New Mexico 811 Notification

Background

By law, individual homeowners are responsible for marking all utility lines, including their water lines, before any project that involves excavation. New Mexico One Call, Inc. dba New Mexico 811 (NM811) advertises this requirement through their “call before you dig” campaign. More information is available on the [NM811 website](#). The [NM811 Homeowner Portal](#) has details and a step-by-step notification process.

State law also requires water systems like Tierra Monte Water Users Association (TMWUA) to be members of NM811. As noted, NM811 requires everyone involved in excavation using mechanical equipment to provide at least two (2) working days’ notice to underground facility operators. Once notified, NM811 generates a ticket to all NM811 members – including TMWUA – who have underground facilities at or near the excavation location. **These tickets require response within the two-business-day window prior to excavation.** Failure to respond to NM811 tickets can result in significant fines to our water association. This constrained timeline creates a significant burden for our small, community-run utility.

Purpose

Ensure that property owners understand their responsibilities under New Mexico's utility notification law and TMWUA's excavation policy. Establish an advance notification process that gives the TMWUA Board adequate time to prepare before NM811 issues a ticket, allowing the Board to meet our legal obligations efficiently and without the time pressure created by last-minute notifications.

Statement

All excavation projects trigger the requirement for property owners to notify NM811. As a member of NM811, TMWUA must respond to **all** generated tickets regardless of whether the excavation involves our water lines. The Board expects all community property owners to understand the procedures required when scheduling projects that require excavation on their property.

Policy

Element	Rationale
1. A property owner who intends to schedule a project requiring excavation must notify the Board via email to Board@TMWUA.org as soon as the planning and budgeting process begins.	Provides earlier notice that TMWUA will receive a NM811 ticket, assisting the Board in responding without unnecessary urgency.

2. A property owner planning a project requiring excavation is responsible for scheduling and paying for all services to find and mark water lines from the water meter to any location on the owner's property.	Establishes the individual property owner's responsibilities when scheduling a project that requires excavation.
3. TMWUA is responsible for the maintenance and repair of all water lines running from the main street line to each individual water meter. Problems in these lines – including leaks – can result in significant water loss and service disruption for the entire community, making prompt access essential. By participating in the community water system, TMWUA deems that property owners have granted the right to access the portion of their property between the main line and their water meter for purposes of inspection, maintenance and repair.	Establishes the TMWUA board of directors' responsibility for the integrity of our water system and the necessity of access to repair water lines between the main line and each individual water meter.

Approved by the TMWUA Board: June 2026
Next Review Date: June 2028